

THE HINDU MARRIAGES (VALIDATION OF PROCEEDINGS) ACT, 1960

ACT NO. 19 OF 1960

[6th May, 1960.]

An Act to validate certain proceedings under the Hindu Marriage Act, 1955.

BE it enacted by Parliament in the Eleventh Year of the Republic of India as follows:—

1. Short title and extent.—(1) This Act may be called the Hindu Marriages (Validation of Proceedings) Act, 1960.

(2) It extends to the whole of India except the State of Jammu and Kashmir.

2. Validation of proceedings of certain courts under Act 25 of 1955.—(1) All proceedings taken and decrees and orders passed before the commencement of this Act by any of the courts referred to in sub-section (2), exercising or purporting to exercise jurisdiction under the Hindu Marriage Act, 1955 (25 of 1955), shall, notwithstanding any judgment, decree or order of any court, be deemed to be as good and valid in law as if the court exercising or purporting to exercise such jurisdiction had been a district court within the meaning of the said Act.

(2) The courts referred to in sub-section (1) are the following, namely:—

The court of an additional judge, additional district judge, joint district judge, assistant district judge, assistant judge and any other court, by whatever name called, not being lower in rank than the court of a subordinate judge.